

Petitioner's Application to File a Late Government Claim Was Made over One Year After the Accrual of the Cause of Action

Before a court may grant relief from the claim requirements, a petitioner must establish that the application for late claim was presented within a reasonable time, not to exceed one year after the accrual of the cause of action. (Gov. Code § 946.6; *Reyes v. County of Los Angeles* (1988) 197 Cal.App.3d 584, 590.) This showing must be made by a preponderance of the evidence. (*Dep't of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1293.)

When a petitioner cannot demonstrate that an application for late claim was presented within one year, the court has no jurisdiction to grant relief. (*Greyhound Lines, Inc. v. County of Santa Clara* (1986) 187 Cal.App.3d 480, 488; see also *Brandon G. v. Gray* (2003) 111 Cal.App.4th 28, 34 ("The court, however, lacks jurisdiction to grant relief if the application to file a late claim was filed more than one year after the cause of action accrued."))

The California Supreme Court has stated that "[g]enerally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.'" (*O.B. v. Los Angeles Unified School Dist.* (2025) 113 Cal.App.5th 930, 941; citing *Rubenstein v. Doe No. 1* (2017) 3 Cal.5th 903, 911.) However, accrual of a cause of action is postponed until the plaintiff discovers, or has reason to discover, the cause of action. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them. (*Id.*)

The Petition states that Petitioner lost his vehicle on February 1, 2023, which is when his claim accrued against the City. Thus, Petitioner had until February 1, 2024, to present his late claim application to the City. According to the City's records, Petitioner did not meet his deadline.

Late claim applications are deemed presented on the day they are deposited in the mail. (Gov. Code § 915.2.) The envelope Petitioner's mailed in late claim application was postmarked January 22, 2026. (RJN ¶ 5, Exh. E.) This is over two years after Petitioner's cause of action accrued. Petitioner cannot cure this to avoid a jurisdictional prerequisite. Accordingly, this Court does not have jurisdiction to grant this Petition.

Conclusion

For the reasons analyzed above, Court **denies the Petition for Relief from Claim Presentation Requirement.**

18. 9:00 AM CASE NUMBER: N26-0671
CASE NAME: CLAIM OF:AVA AVALOS
*HEARING ON MINOR'S COMPROMISE
FILED BY: AVALOS, JAVIER
TENTATIVE RULING:

Given the amended filing, this line appears duplicative.

19. 9:00 AM CASE NUMBER: N26-0671
CASE NAME: CLAIM OF:AVA AVALOS
*HEARING ON MINOR'S COMPROMISE AMENDED